

Opinion of ALITO, J.

violates the Constitution or any applicable statutory provision related to the census, his action is reviewable. The Secretary is also accountable to Congress with respect to the administration of the census since he has that power only because Congress has found it appropriate to entrust it to him. And the Secretary is always answerable to the President, who is, in turn, accountable to the people.

* * *

Throughout our Nation's history, the Executive Branch has decided without judicial supervision or interference whether and, if so, in what form the decennial census should inquire about the citizenship of the inhabitants of this country. Whether to put a citizenship question on the 2020 census questionnaire is a question that is committed by law to the discretion of the Secretary of Commerce and is therefore exempt from APA review. The District Court had the authority to decide respondents' constitutional claims, but the remainder of their complaint should have been dismissed.

I join Parts I, II, III, IV–B, and IV–C¹⁵ of the opinion of the Court. I do not join the remainder, and insofar as the Court holds that the Secretary's decision is reviewable under the APA, I respectfully dissent.

¹⁵ Although I would hold that the Secretary's decision is not reviewable under the APA, in the alternative I would conclude that the decision survives review under the applicable standards. I join Parts IV–B and IV–C on that understanding.

Syllabus

MITCHELL *v.* WISCONSIN

CERTIORARI TO THE SUPREME COURT OF WISCONSIN

No. 18–6210. Argued April 23, 2019—Decided June 27, 2019

Petitioner Gerald Mitchell was arrested for operating a vehicle while intoxicated after a preliminary breath test registered a blood-alcohol concentration (BAC) that was triple Wisconsin’s legal limit for driving. As is standard practice, the arresting officer drove Mitchell to a police station for a more reliable breath test using evidence-grade equipment. By the time Mitchell reached the station, he was too lethargic for a breath test, so the officer drove him to a nearby hospital for a blood test. Mitchell was unconscious by the time he arrived at the hospital, but his blood was drawn anyway under a state law that presumes that a person incapable of withdrawing implied consent to BAC testing has not done so. The blood analysis showed Mitchell’s BAC to be above the legal limit, and he was charged with violating two drunk-driving laws. Mitchell moved to suppress the results of the blood test on the ground that it violated his Fourth Amendment right against “unreasonable searches” because it was conducted without a warrant. The trial court denied the motion, and Mitchell was convicted. On certification from the intermediate appellate court, the Wisconsin Supreme Court affirmed the lawfulness of Mitchell’s blood test.

Held: The judgment is vacated, and the case is remanded.

2018 WI 84, 383 Wis. 2d 192, 914 N. W. 2d 151, vacated and remanded.

JUSTICE ALITO, joined by THE CHIEF JUSTICE, JUSTICE BREYER, and JUSTICE KAVANAUGH, concluded that when a driver is unconscious and cannot be given a breath test, the exigent-circumstances doctrine generally permits a blood test without a warrant. Pp. 846–857.

(a) BAC tests are Fourth Amendment searches. See *Birchfield v. North Dakota*, 579 U.S. 438, 455. A warrant is normally required for a lawful search, but there are well-defined exceptions to this rule, including the “exigent circumstances” exception, which allows warrantless searches “to prevent the imminent destruction of evidence.” *Missouri v. McNeely*, 569 U.S. 141, 149. In *McNeely*, this Court held that the fleeting nature of blood-alcohol evidence alone was not enough to bring BAC testing within the exigency exception. *Id.*, at 156. But in *Schmerber v. California*, 384 U.S. 757, the dissipation of BAC did justify a blood test of a drunk driver whose accident gave police other pressing duties, for then the *further* delay caused by a warrant application would indeed have threatened the destruction of evidence. Like

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Schmerber, unconscious-driver cases will involve a heightened degree of urgency for several reasons. And when the driver's stupor or unconsciousness deprives officials of a reasonable opportunity to administer a breath test using evidence-grade equipment, a blood test will be essential for achieving the goals of BAC testing. Pp. 846–849.

(b) Under the exigent-circumstances exception, a warrantless search is allowed when “there is compelling need for official action and no time to secure a warrant.” *McNeely*, 569 U. S., at 149. Pp. 849–857.

(1) There is clearly a “compelling need” for a blood test of drunk-driving suspects whose condition deprives officials of a reasonable opportunity to conduct a breath test. First, highway safety is a vital public interest—a “compelling” and “paramount” interest, *Mackey v. Montrym*, 443 U. S. 1, 17–18. Second, when it comes to promoting that interest, federal and state lawmakers have long been convinced that legal limits on a driver's BAC make a big difference. And there is good reason to think that such laws have worked. *Birchfield*, 579 U. S., at 448. Third, enforcing BAC limits obviously requires a test that is accurate enough to stand up in court. *Id.*, at 445–447. And such testing must be prompt because it is “a biological certainty” that “[a]lcohol dissipates from the bloodstream,” “literally disappearing by the minute.” *McNeely*, 569 U. S., at 169 (ROBERTS, C. J., concurring). Finally, when a breath test is unavailable to promote the interests served by legal BAC limits, “a blood draw becomes necessary.” *Id.*, at 170. Pp. 851–853.

(2) *Schmerber* demonstrates that an exigency exists when (1) BAC evidence is dissipating and (2) some other factor creates pressing health, safety, or law enforcement needs that would take priority over a warrant application. Because both conditions are met when a drunk-driving suspect is unconscious, *Schmerber* controls. A driver's unconsciousness does not just create pressing needs; it is *itself* a medical emergency. In such a case, as in *Schmerber*, an officer could “reasonably have believed that he was confronted with an emergency.” 384 U. S., at 771. And in many unconscious-driver cases, the exigency will be *especially* acute. A driver so drunk as to lose consciousness is quite likely to crash, giving officers a slew of urgent tasks beyond that of securing medical care for the suspect—tasks that would require them to put off applying for a warrant. The time needed to secure a warrant may have shrunk over the years, but it has not disappeared; and forcing police to put off other urgent tasks for even a relatively short period of time may have terrible collateral costs. Pp. 853–857.

(c) On remand, Mitchell may attempt to show that his was an unusual case, in which his blood would not have been drawn had police not been seeking BAC information and police could not have reasonably judged

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that a warrant application would interfere with other pressing needs or duties. P. 857.

JUSTICE THOMAS would apply a *per se* rule, under which the natural metabolization of alcohol in the blood stream “creates an exigency once police have probable cause to believe the driver is drunk,” regardless of whether the driver is conscious. *Missouri v. McNeely*, 569 U. S. 141, 178 (THOMAS, J., dissenting). Pp. 858–861.

ALITO, J., announced the judgment of the Court and delivered an opinion, in which ROBERTS, C. J., and BREYER and KAVANAUGH, JJ., joined. THOMAS, J., filed an opinion concurring in the judgment, *post*, p. 858. SOTOMAYOR, J., filed a dissenting opinion, in which GINSBURG and KAGAN, JJ., joined, *post*, p. 861. GORSUCH, J., filed a dissenting opinion, *post*, p. 878.

Andrew R. Hinkel argued the cause for petitioner. With him on the briefs were *Ginger D. Anders* and *Celia R. Choy*.

Hannah S. Jurss, Assistant Attorney General of Wisconsin, argued the cause for respondent. With her on the brief were *Joshua L. Kaul*, Attorney General, and *Anthony D. Russomanno* and *Michael C. Sanders*, Assistant Attorneys General.*

*Briefs of *amici curiae* urging reversal were filed for the American Civil Liberties Union et al. by *David D. Cole*, *Ezekiel R. Edwards*, *Brandon J. Buskey*, and *Nathan Freed Wessler*; for the California DUI Lawyers Association by *Donald J. Bartell* and *Lara J. Gressley*; for the DKT Liberty Project et al. by *Jessica Ring Amunson*; for the DUI Defense Lawyers Association by *Gregory A. Willis* and *D. Timothy Huey*; for the National College for DUI Defense by *Fleming Kanan Whited III*, *Andrew Mishlove*, *Donald J. Ramsell*, and *Michelle Behan*; for Restore the Fourth, Inc., by *Mahesha P. Subbaraman*; and for The Rutherford Institute et al. by *D. Alicia Hickok*, *John W. Whitehead*, *Ilya Shapiro*, *Clark M. Neily III*, and *Jay R. Schweikert*.

Briefs of *amici curiae* urging affirmance were filed for the State of Colorado et al. by *Philip J. Weiser*, Attorney General of Colorado, *Eric R. Olson*, Solicitor General, and *L. Andrew Cooper*, Deputy Attorney General, and by the Attorneys General for their respective States as follows: *Ashley Moody* of Florida, *Christopher M. Carr* of Georgia, *Lawrence G. Wasden* of Idaho, *Kwame Raoul* of Illinois, *Curtis T. Hill, Jr.*, of Indiana, *Thomas J. Miller* of Iowa, *Andy Beshear* of Kentucky, *Jeff Landry* of Louisiana, *Brian E. Frosh* of Maryland, *Keith Ellison* of Minnesota, *Timothy C. Fox* of Montana, *Joshua H. Stein* of North Carolina, *Dave Yost* of

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JUSTICE ALITO announced the judgment of the Court and delivered an opinion, in which THE CHIEF JUSTICE, JUSTICE BREYER, and JUSTICE KAVANAUGH join.

In this case, we return to a topic that we have addressed twice in recent years: the circumstances under which a police officer may administer a warrantless blood-alcohol-concentration (BAC) test to a motorist who appears to have been driving under the influence of alcohol. We have previously addressed what officers may do in two broad categories of cases. First, an officer may conduct a BAC test if the facts of a particular case bring it within the exigent-circumstances exception to the Fourth Amendment's general requirement of a warrant. Second, if an officer has probable cause to arrest a motorist for drunk driving, the officer may conduct a breath test (but not a blood test) under the rule allowing warrantless searches of a person incident to arrest.

Today, we consider what police officers may do in a narrow but important category of cases: those in which the driver is unconscious and therefore cannot be given a breath test. In such cases, we hold, the exigent-circumstances rule almost always permits a blood test without a warrant. When a breath test is impossible, enforcement of the drunk-driving laws depends upon the administration of a blood test. And when a police officer encounters an unconscious driver, it is very likely that the driver would be taken to an emergency room and that his blood would be drawn for diagnostic purposes even if the police were not seeking BAC information. In addition, police officers most frequently come upon unconscious drivers when they report to the scene of an accident, and under those circumstances, the officers' many

Ohio, *Mike Hunter* of Oklahoma, *Ellen F. Rosenblum* of Oregon, *Alan Wilson* of South Carolina, and *Jason R. Ravensborg* of South Dakota; for the League of Wisconsin Municipalities et al. by *Douglas Hoffer*; for the National Conference of State Legislatures et al. by *Lauren S. Kuley*, *Keith Bradley*, and *Lisa Soronen*; and for Mothers Against Drunk Driving by *Theane Evangelis* and *Lauren M. Blas*.

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responsibilities—such as attending to other injured drivers or passengers and preventing further accidents—may be incompatible with the procedures that would be required to obtain a warrant. Thus, when a driver is unconscious, the general rule is that a warrant is not needed.

I

A

In *Birchfield v. North Dakota*, 579 U. S. 438 (2016), we recounted the country’s efforts over the years to address the terrible problem of drunk driving. Today, “all States have laws that prohibit motorists from driving with a [BAC] that exceeds a specified level.” *Id.*, at 444. And to help enforce BAC limits, every State has passed what are popularly called implied-consent laws. *Ibid.* As “a condition of the privilege of” using the public roads, these laws require that drivers submit to BAC testing “when there is sufficient reason to believe they are violating the State’s drunk-driving laws.” *Id.*, at 444, 447.

Wisconsin’s implied-consent law is much like those of the other 49 States and the District of Columbia. It deems drivers to have consented to breath or blood tests if an officer has reason to believe they have committed one of several drug- or alcohol-related offenses.¹ See Wis. Stat. §§343.305(2), (3). Officers seeking to conduct a BAC test must read aloud a statement declaring their intent to administer the test and advising drivers of their options and the implications of their choice. §343.305(4). If a driver’s BAC level proves too high, his license will be suspended; but if he refuses testing, his license will be *revoked* and his refusal may be used against him in court. See *ibid.* No test will

¹ Wisconsin also authorizes BAC testing of drivers involved in accidents that cause significant bodily harm, with or without probable cause of drunk driving. See Wis. Stat. §343.305(3)2 (2016). We do not address those provisions. And while Wisconsin’s and other implied-consent laws permit urine tests, those tests are less common, see *Birchfield v. North Dakota*, 579 U. S. 438, 447, n. 1 (2016), and we do not consider them here.

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be administered if a driver refuses—or, as the State would put it, “withdraws” his statutorily presumed consent. But “[a] person who is unconscious or otherwise not capable of withdrawing consent is presumed not to have” withdrawn it. § 343.305(3)(b). See also §§ 343.305(3)(ar)1–2. More than half the States have provisions like this one regarding unconscious drivers.

B

The sequence of events that gave rise to this case began when Officer Alexander Jaeger of the Sheboygan Police Department received a report that petitioner Gerald Mitchell, appearing to be very drunk, had climbed into a van and driven off. Jaeger soon found Mitchell wandering near a lake. Stumbling and slurring his words, Mitchell could hardly stand without the support of two officers. Jaeger judged a field sobriety test hopeless, if not dangerous, and gave Mitchell a preliminary breath test. It registered a BAC level of 0.24%, triple the legal limit for driving in Wisconsin. Jaeger arrested Mitchell for operating a vehicle while intoxicated and, as is standard practice, drove him to a police station for a more reliable breath test using better equipment.

On the way, Mitchell’s condition continued to deteriorate—so much so that by the time the squad car had reached the station, he was too lethargic even for a breath test. Jaeger therefore drove Mitchell to a nearby hospital for a blood test; Mitchell lost consciousness on the ride over and had to be wheeled in. Even so, Jaeger read aloud to a slumped Mitchell the standard statement giving drivers a chance to refuse BAC testing. Hearing no response, Jaeger asked hospital staff to draw a blood sample. Mitchell remained unconscious while the sample was taken, and analysis of his blood showed that his BAC, about 90 minutes after his arrest, was 0.222%.

Mitchell was charged with violating two related drunk-driving provisions. See §§ 346.63(1)(a), (b). He moved to suppress the results of the blood test on the ground that it

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violated his Fourth Amendment right against “unreasonable searches” because it was conducted without a warrant. Wisconsin chose to rest its response on the notion that its implied-consent law (together with Mitchell’s free choice to drive on its highways) rendered the blood test a consensual one, thus curing any Fourth Amendment problem. In the end, the trial court denied Mitchell’s motion to suppress, and a jury found him guilty of the charged offenses. The intermediate appellate court certified two questions to the Wisconsin Supreme Court: first, whether compliance with the State’s implied-consent law was sufficient to show that Mitchell’s test was consistent with the Fourth Amendment and, second, whether a warrantless blood draw from an unconscious person violates the Fourth Amendment. See 2018 WI 84, ¶15, 383 Wis. 2d 192, 202–203, 914 N. W. 2d 151, 155–156. The Wisconsin Supreme Court affirmed Mitchell’s convictions, and we granted certiorari, 586 U. S. 1113 (2019), to decide “[w]hether a statute authorizing a blood draw from an unconscious motorist provides an exception to the Fourth Amendment warrant requirement,” Pet. for Cert. ii.

II

In considering Wisconsin’s implied-consent law, we do not write on a blank slate. “Our prior opinions have referred approvingly to the general concept of implied-consent laws that impose civil penalties and evidentiary consequences on motorists who refuse to comply.” *Birchfield*, 579 U. S., at 476–477. But our decisions have not rested on the idea that these laws do what their popular name might seem to suggest—that is, create actual consent to all the searches they authorize. Instead, we have based our decisions on the precedent regarding the specific constitutional claims in each case, while keeping in mind the wider regulatory scheme developed over the years to combat drunk driving. That scheme is centered on legally specified BAC limits for driv-

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ers—limits enforced by the BAC tests promoted by implied-consent laws.

Over the last 50 years, we have approved many of the defining elements of this scheme. We have held that forcing drunk-driving suspects to undergo a blood test does not violate their constitutional right against self-incrimination. See *Schmerber v. California*, 384 U. S. 757, 765 (1966). Nor does using their refusal against them in court. See *South Dakota v. Neville*, 459 U. S. 553, 563 (1983). And punishing that refusal with automatic license revocation does not violate drivers' due process rights if they have been arrested upon probable cause, *Mackey v. Montrym*, 443 U. S. 1 (1979); on the contrary, this kind of summary penalty is "unquestionably legitimate," *Neville*, *supra*, at 560.

These cases generally concerned the Fifth and Fourteenth Amendments, but motorists charged with drunk driving have also invoked the Fourth Amendment's ban on "unreasonable searches" since BAC tests are "searches." See *Birchfield*, 579 U. S., at 455. Though our precedent normally requires a warrant for a lawful search, there are well-defined exceptions to this rule. In *Birchfield*, we applied precedent on the "search-incident-to-arrest" exception to BAC testing of conscious drunk-driving suspects. We held that their drunk-driving arrests, taken alone, justify warrantless breath tests but not blood tests, since breath tests are less intrusive, just as informative, and (in the case of conscious suspects) readily available. *Id.*, at 476.

We have also reviewed BAC tests under the "exigent circumstances" exception—which, as noted, allows warrantless searches "to prevent the imminent destruction of evidence." *Missouri v. McNeely*, 569 U. S. 141, 149 (2013). In *McNeely*, we were asked if this exception covers BAC testing of drunk-driving suspects in light of the fact that blood-alcohol evidence is always dissipating due to "natural metabolic processes." *Id.*, at 152. We answered that the fleeting quality of BAC evidence alone is not enough. *Id.*,

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at 156. But in *Schmerber* it *did* justify a blood test of a drunk driver who had gotten into a car accident that gave police other pressing duties, for then the “*further* delay” caused by a warrant application really “*would* have threatened the destruction of evidence.” *McNeely, supra*, at 152 (emphasis added).

Like *Schmerber*, this case sits much higher than *McNeely* on the exigency spectrum. *McNeely* was about the minimum degree of urgency common to all drunk-driving cases. In *Schmerber*, a car accident heightened that urgency. And here Mitchell’s medical condition did just the same.

Mitchell’s stupor and eventual unconsciousness also deprived officials of a reasonable opportunity to administer a breath test. To be sure, Officer Jaeger managed to conduct “a preliminary breath test” using a portable machine when he first encountered Mitchell at the lake. App. to Pet. for Cert. 60a. But he had no reasonable opportunity to give Mitchell a breath test using “evidence-grade breath testing machinery.” *Birchfield*, 579 U. S., at 487 (SOTOMAYOR, J., concurring in part and dissenting in part). As a result, it was reasonable for Jaeger to seek a better breath test at the station; he acted with reasonable dispatch to procure one; and when Mitchell’s condition got in the way, it was reasonable for Jaeger to pursue a blood test. As JUSTICE SOTOMAYOR explained in her partial dissent in *Birchfield*:

“There is a common misconception that breath tests are conducted roadside, immediately after a driver is arrested. While some preliminary testing is conducted roadside, reliability concerns with roadside tests confine their use in most circumstances to establishing probable cause for an arrest. . . . The standard evidentiary breath test is conducted after a motorist is arrested and transported to a police station, governmental building, or mobile testing facility where officers can access reliable, evidence-grade breath testing machinery.” *Ibid.*

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Because the “standard evidentiary breath test is conducted after a motorist is arrested and transported to a police station” or another appropriate facility, *ibid.*, the important question here is what officers may do when a driver’s unconsciousness (or stupor) eliminates any reasonable opportunity for *that* kind of breath test.

III

The Fourth Amendment guards the “right of the people to be secure in their persons . . . against unreasonable searches” and provides that “no Warrants shall issue, but upon probable cause.” A blood draw is a search of the person, so we must determine if its administration here without a warrant was reasonable. See *id.*, at 455 (majority opinion). Though we have held that a warrant is normally required, we have also “made it clear that there are exceptions to the warrant requirement.” *Illinois v. McArthur*, 531 U. S. 326, 330 (2001). And under the exception for exigent circumstances, a warrantless search is allowed when “‘there is compelling need for official action and no time to secure a warrant.’” *McNeely*, *supra*, at 149 (quoting *Michigan v. Tyler*, 436 U. S. 499, 509 (1978)). In *McNeely*, we considered how the exigent-circumstances exception applies to the broad category of cases in which a police officer has probable cause to believe that a motorist was driving under the influence of alcohol, and we do not revisit that question. Nor do we settle whether the exigent-circumstances exception covers the specific facts of this case.² Instead, we address how the ex-

²JUSTICE SOTOMAYOR’s dissent argues that Wisconsin waived the argument that we now adopt, but the dissent paints a misleading picture of both the proceedings below and the ground for our decision.

First, as to the proceedings below, the dissent contends that the sole question certified to the Wisconsin Supreme Court was “‘whether the warrantless blood draw of an unconscious motorist pursuant to Wisconsin’s implied consent law, where no exigent circumstances exist or have been argued, violates the Fourth Amendment.’” *Post*, at 863 (quoting App. 61). That is indeed how the intermediate appellate court understood the issue

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ception bears on the category of cases encompassed by the question on which we granted certiorari—those involving unconscious drivers.³ In those cases, the need for a blood

in the case, but the State Supreme Court took a broader view, as was its right. It regarded the appeal as presenting two questions, one of which was “whether a warrantless blood draw from an unconscious person pursuant to Wis. Stat. §343.305(3)(b) violates the Fourth Amendment.” See 383 Wis. 2d 192, 202–203, 914 N. W. 2d 151, 155–156 (2018). This broad question easily encompasses the rationale that we adopt today.

Second, after noting that the State did not attempt below to make a case-specific showing of exigent circumstances, the dissent claims that our decision is based on this very ground. But that is not at all the basis for our decision. We do not hold that the State established that the facts of this particular case involve exigent circumstances under *McNeely*. Rather, we adopt a rule for an entire category of cases—those in which a motorist believed to have driven under the influence of alcohol is unconscious and thus cannot be given a breath test. This rule is not based on what happened in petitioner’s particular case but on the circumstances generally present in cases that fall within the scope of the rule. Those are just the sorts of features of unconscious-driver cases that Wisconsin brought to our attention, see Brief for Respondent 54–55; Tr. of Oral Arg. 32–34, 48–51, which petitioner addressed, see Reply Brief 14–15; Tr. of Oral Arg. 15–20, 23–24, 29–31, 63–66. So it is entirely proper for us to decide the case on this ground. See *Thigpen v. Roberts*, 468 U. S. 27, 29–30 (1984).

³While our exigent-circumstances precedent requires a “‘totality of the circumstances’” analysis, “the circumstances in drunk driving cases are often typical, and the Court should be able to offer guidance on how police should handle cases like the one before us.” *McNeely*, 569 U. S., at 166 (ROBERTS, C. J., concurring in part and dissenting in part). Indeed, our exigency case law is full of general rules providing such guidance. Thus, we allow police to proceed without a warrant when an occupant of a home requires “emergency assistance,” *Brigham City v. Stuart*, 547 U. S. 398, 403 (2006); when a building is on fire, see *Michigan v. Tyler*, 436 U. S. 499, 509 (1978); and when an armed robber has just entered a home, see *United States v. Santana*, 427 U. S. 38 (1976). “In each of these cases, the requirement that we base our decision on the ‘totality of the circumstances’ has not prevented us from spelling out a general rule for the police to follow.” *McNeely*, *supra*, at 168 (opinion of ROBERTS, C. J.). Neither does it prevent us here.

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test is compelling, and an officer's duty to attend to more pressing needs may leave no time to seek a warrant.

A

The importance of the needs served by BAC testing is hard to overstate. The bottom line is that BAC tests are needed for enforcing laws that save lives. The specifics, in short, are these: Highway safety is critical; it is served by laws that criminalize driving with a certain BAC level; and enforcing these legal BAC limits requires efficient testing to obtain BAC evidence, which naturally dissipates. So BAC tests are crucial links in a chain on which vital interests hang. And when a breath test is unavailable to advance those aims, a blood test becomes essential. Here we add a word about each of these points.

First, highway safety is a vital public interest. For decades, we have strained our vocal chords to give adequate expression to the stakes. We have called highway safety a “compelling interest,” *Mackey*, 443 U. S., at 19; we have called it “paramount,” *id.*, at 17. Twice we have referred to the effects of irresponsible driving as “slaughter” comparable to the ravages of war. *Breithaupt v. Abram*, 352 U. S. 432, 439 (1957); *Perez v. Campbell*, 402 U. S. 637, 657, 672 (1971) (Blackmun, J., concurring in result in part and dissenting in part). We have spoken of “carnage,” *Neville*, 459 U. S., at 558–559, and even “frightful carnage,” *Tate v. Short*, 401 U. S. 395, 401 (1971) (Blackmun, J., concurring). The frequency of preventable collisions, we have said, is “tragic,” *Neville*, *supra*, at 558, and “astounding,” *Breithaupt*, *supra*, at 439. And behind this fervent language lie chilling figures, all captured in the fact that from 1982 to 2016, alcohol-related accidents took roughly 10,000 to 20,000 lives in this Nation *every single year*. See National Highway Traffic Safety Admin. (NHTSA), Traffic Safety Facts 2016, p. 40 (May 2018). In the best years, that would add up to more than one fatality per hour.

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Second, when it comes to fighting these harms and promoting highway safety, federal and state lawmakers have long been convinced that specified BAC limits make a big difference. States resorted to these limits when earlier laws that included no “statistical definition of intoxication” proved ineffectual or hard to enforce. *Birchfield*, 579 U. S., at 444–445. The maximum permissible BAC, initially set at 0.15%, was first lowered to 0.10% and then to 0.08%. *Id.*, at 445, 448. Congress encouraged this process by conditioning the award of federal highway funds on the establishment of a BAC limit of 0.08%, see 23 U. S. C. § 163(a); 23 CFR § 1225.1 (2012), and every State has adopted this limit.⁴ Not only that, many States, including Wisconsin, have passed laws imposing increased penalties for recidivists or for drivers with a BAC level that exceeds a higher threshold. See Wis. Stat. § 346.65(2)(am); *Birchfield*, 579 U. S., at 448–449.

There is good reason to think this strategy has worked. As we noted in *Birchfield*, these tougher measures corresponded with a dramatic drop in highway deaths and injuries: From the mid-1970’s to the mid-1980’s, “the number of annual fatalities averaged 25,000; by 2014 . . . , the number had fallen to below 10,000.” *Id.*, at 448.

Third, enforcing BAC limits obviously requires a test that is accurate enough to stand up in court, *id.*, at 445–447; see also *McNeely*, 569 U. S., at 159–160 (plurality opinion). And we have recognized that “[e]xtraction of blood samples for testing is a highly effective means of” measuring “the influence of alcohol.” *Schmerber*, 384 U. S., at 771.

Enforcement of BAC limits also requires prompt testing because it is “a biological certainty” that “[a]lcohol dissipates from the bloodstream at a rate of 0.01 percent to 0.025 percent per hour. . . . Evidence is literally disappearing by the minute.” *McNeely*, 569 U. S., at 169 (opinion of ROBERTS, C. J.). As noted, the ephemeral nature of BAC was “essen-

⁴See NHTSA, Alcohol and Highway Safety: A Review of the State of Knowledge 167 (DOT HS 811 374, Mar. 2011).

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tial to our holding in *Schmerber*,” which itself allowed a warrantless blood test for BAC. *Id.*, at 152 (opinion of the Court). And even when we later held that the exigent-circumstances exception would not permit a warrantless blood draw in *every* drunk-driving case, we acknowledged that delays in BAC testing can “raise questions about . . . accuracy.” *Id.*, at 156.

It is no wonder, then, that the implied-consent laws that incentivize prompt BAC testing have been with us for 65 years and now exist in all 50 States. *Birchfield, supra*, at 448. These laws and the BAC tests they require are tightly linked to a regulatory scheme that serves the most pressing of interests.

Finally, when a breath test is unavailable to promote those interests, “a blood draw becomes necessary.” *McNeely*, 569 U. S., at 170 (opinion of ROBERTS, C. J.). Thus, in the case of unconscious drivers, who cannot blow into a breathalyzer, blood tests are essential for achieving the compelling interests described above.

Indeed, not only is the link to pressing interests here tighter; the interests themselves are greater: Drivers who are drunk enough to pass out at the wheel or soon afterward pose a much greater risk. It would be perverse if the more wanton behavior were rewarded—if the more harrowing threat were harder to punish.

For these reasons, there clearly is a “compelling need” for a blood test of drunk-driving suspects whose condition deprives officials of a reasonable opportunity to conduct a breath test. *Id.*, at 149 (opinion of the Court) (internal quotation marks omitted). The only question left, under our exigency doctrine, is whether this compelling need justifies a warrantless search because there is, furthermore, “no time to secure a warrant.” *Ibid.*

B

We held that there was no time to secure a warrant before a blood test of a drunk-driving suspect in *Schmerber* because

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the officer there could “reasonably have believed that he was confronted with an emergency, in which the delay necessary to obtain a warrant, under the circumstances, threatened the destruction of evidence.” 384 U. S., at 770 (internal quotation marks omitted). So even if the constant dissipation of BAC evidence *alone* does not create an exigency, see *McNeely, supra*, at 150–151, *Schmerber* shows that it does so when combined with other pressing needs:

“We are told that [1] the percentage of alcohol in the blood begins to diminish shortly after drinking stops, as the body functions to eliminate it from the system. Particularly in a case such as this, where [2] time had to be taken to bring the accused to a hospital and to investigate the scene of the accident, there was no time to seek out a magistrate and secure a warrant. Given these special facts, we conclude that the attempt to secure evidence of blood-alcohol content in this case [without a warrant] was . . . appropriate” 384 U. S., at 770–771.

Thus, exigency exists when (1) BAC evidence is dissipating and (2) some other factor creates pressing health, safety, or law enforcement needs that would take priority over a warrant application. Both conditions are met when a drunk-driving suspect is unconscious, so *Schmerber* controls: With such suspects, too, a warrantless blood draw is lawful.

1

In *Schmerber*, the extra factor giving rise to urgent needs that would only add to the delay caused by a warrant application was a car accident; here it is the driver’s unconsciousness. Indeed, unconsciousness does not just create pressing needs; it is *itself* a medical emergency.⁵ It means that the

⁵See National Institutes of Health, U. S. National Library of Medicine, MedlinePlus, Unconsciousness (June 3, 2019), <https://medlineplus.gov/ency/article/000022.htm> (all Internet materials as last visited June 25, 2019).

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suspect will have to be rushed to the hospital or similar facility not just for the blood test itself but for urgent medical care.⁶ Police can reasonably anticipate that such a driver might require monitoring, positioning, and support on the way to the hospital;⁷ that his blood may be drawn anyway, for diagnostic purposes, immediately on arrival;⁸ and that immediate medical treatment could delay (or otherwise distort the results of) a blood draw conducted later, upon receipt of a warrant, thus reducing its evidentiary value. See *McNeely*, *supra*, at 156 (plurality opinion). All of that sets this case apart from the uncomplicated drunk-driving scenarios addressed in *McNeely*. Just as the ramifications of a car accident pushed *Schmerber* over the line into exigency, so does the condition of an unconscious driver bring his blood draw under the exception. In such a case, as in *Schmerber*, an officer could “reasonably have believed that he was confronted with an emergency.” 384 U. S., at 770.

⁶D. Limmer & M. O’Keefe, *Emergency Care* 598 (13th ed. 2016).

⁷See *id.*, at 593–594.

⁸See J. Kwasnoski, G. Partridge, & J. Stephen, *Officer’s DUI Handbook* 142 (6th ed. 2013) (“[M]ost hospitals routinely withdraw blood from the driver immediately upon admittance”); see also E. Mitchell & R. Medzon, *Introduction to Emergency Medicine* 269 (2005) (“Serum glucose and blood alcohol concentrations are two pieces of information that are of paramount importance when an apparently intoxicated patient arrives at the [emergency room]”); Mayo Clinic, *Alcohol Poisoning: Diagnosis & Treatment* (2019), <https://www.mayoclinic.org/diseases-conditions/alcohol-poisoning/diagnosis-treatment/drc-20354392>. In this respect, the case for allowing a blood draw is stronger here than in *Schmerber v. California*, 384 U. S. 757 (1966). In the latter, it gave us pause that blood draws involve piercing a person’s skin. See *id.*, at 762, 770. But since unconscious suspects will often have their skin pierced and blood drawn for diagnostic purposes, allowing law enforcement to use blood taken from that initial piercing would not increase the bodily intrusion. In fact, dispensing with the warrant rule could *lessen* the intrusion. It could enable authorities to use blood obtained by hospital staff when the suspect is admitted rather than having to wait to hear back about a warrant and then order what might be a second blood draw.

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Indeed, in many unconscious-driver cases, the exigency will be *more* acute, as elaborated in the briefing and argument in this case. A driver so drunk as to lose consciousness is quite likely to crash, especially if he passes out before managing to park. And then the accident might give officers a slew of urgent tasks beyond that of securing (and working around) medical care for the suspect. Police may have to ensure that others who are injured receive prompt medical attention; they may have to provide first aid themselves until medical personnel arrive at the scene. In some cases, they may have to deal with fatalities. They may have to preserve evidence at the scene and block or redirect traffic to prevent further accidents. These pressing matters, too, would require responsible officers to put off applying for a warrant, and that would only exacerbate the delay—and imprecision—of any subsequent BAC test.

In sum, all these rival priorities would put officers, who must often engage in a form of triage, to a dilemma. It would force them to choose between prioritizing a warrant application, to the detriment of critical health and safety needs, and delaying the warrant application, and thus the BAC test, to the detriment of its evidentiary value and all the compelling interests served by BAC limits. This is just the kind of scenario for which the exigency rule was born—just the kind of grim dilemma it lives to dissolve.

2

Mitchell objects that a warrantless search is unnecessary in cases involving unconscious drivers because warrants these days can be obtained faster and more easily. But even in our age of rapid communication,

“[w]arrants inevitably take some time for police officers or prosecutors to complete and for magistrate judges to review. Telephonic and electronic warrants may still require officers to follow time-consuming formalities de-

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signed to create an adequate record, such as preparing a duplicate warrant before calling the magistrate judge. . . . And improvements in communications technology do not guarantee that a magistrate judge will be available when an officer needs a warrant after making a late-night arrest.” *McNeely*, 569 U. S., at 155.

In other words, with better technology, the time required has shrunk, but it has not disappeared. In the emergency scenarios created by unconscious drivers, forcing police to put off other tasks for even a relatively short period of time may have terrible collateral costs. That is just what it means for these situations to *be* emergencies.

IV

When police have probable cause to believe a person has committed a drunk-driving offense and the driver’s unconsciousness or stupor requires him to be taken to the hospital or similar facility before police have a reasonable opportunity to administer a standard evidentiary breath test, they may almost always order a warrantless blood test to measure the driver’s BAC without offending the Fourth Amendment. We do not rule out the possibility that in an unusual case a defendant would be able to show that his blood would not have been drawn if police had not been seeking BAC information, and that police could not have reasonably judged that a warrant application would interfere with other pressing needs or duties. Because Mitchell did not have a chance to attempt to make that showing, a remand for that purpose is necessary.

* * *

The judgment of the Supreme Court of Wisconsin is vacated, and the case is remanded for further proceedings.

It is so ordered.

THOMAS, J., concurring in judgment

JUSTICE THOMAS, concurring in the judgment.

Today, the plurality adopts a difficult-to-administer rule: Exigent circumstances are generally present when police encounter a person suspected of drunk driving—except when they aren't. Compare *ante*, at 854, with *ante*, at 857. The plurality's presumption will rarely be rebutted, but it will nevertheless burden both officers and courts who must attempt to apply it. "The better (and far simpler) way to resolve" this case is to apply "the *per se* rule" I proposed in *Missouri v. McNeely*, 569 U.S. 141, 176 (2013) (dissenting opinion). *Birchfield v. North Dakota*, 579 U.S. 438, 498 (2016) (THOMAS, J., concurring in judgment in part and dissenting in part). Under that rule, the natural metabolization of alcohol in the bloodstream "'creates an exigency once police have probable cause to believe the driver is drunk,'" regardless of whether the driver is conscious. *Ibid.* Because I am of the view that the Wisconsin Supreme Court should apply that rule on remand, I concur only in the judgment.

I

The Fourth Amendment provides that "[t]he right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated." Although the Fourth Amendment does not, by its text, require that searches be supported by a warrant, see *Groh v. Ramirez*, 540 U.S. 551, 571–573 (2004) (THOMAS, J., dissenting), "this Court has inferred that a warrant must generally be secured" for a search to comply with the Fourth Amendment, *Kentucky v. King*, 563 U.S. 452, 459 (2011). We have also recognized, however, that this warrant presumption "may be overcome in some circumstances because 'the ultimate touchstone of the Fourth Amendment is "reasonableness."'" *Ibid.* Accordingly, we have held that "the warrant requirement is subject to certain reasonable exceptions." *Ibid.*